

23CMCV00044 23CMCV00044

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-04

Motion: PLAINTIFFS': (1) DISCOVERY MOTIONS[1]; AND (2) REQUESTS FOR SANCTIONS DATE: August 4, 2026 TIME: 8:30 A.M.

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=COM%2CE%2C08%2F04%2F2026

Source SHA-256: 819b659117a356a25ca4a4407adc26d0bbc2f25c3f9e036140a67455c6611796

Case Number: 23CMCV00044 Hearing Date: August 4, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL
DISTRICT

GODIN

FELICIANO, et al.

Plaintiffs,

vs.

TINISHA MARION NELSON, et
al.,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

CASE

NO: 23CMCV00044

[TENTATIVE] ORDER RE: PLAINTIFFS': (1) DISCOVERY

MOTIONS[1];

AND (2) REQUESTS FOR SANCTIONS

DATE: August 4, 2026

TIME: 8:30 A.M.

DEPT.:

E

Moving Party: Plaintiffs

Godin Feliciano, Lizeth Feliciano, Karol Feliciano, and Sergio Feliciano

Responding Party: Intervenor

Alliance Insurance Company

Notice: Ok

Tentative Ruling: Each

Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set

One is GRANTED.

Plaintiffs'

Requests for Sanctions are GRANTED.

Intervenor's

Requests for Sanctions are DENIED.

I.

BACKGROUND

This

case stems from a motor vehicle accident that occurred on January 22, 2021 at approximately 6:30 p.m. on the westbound side of Imperial Highway near the intersection with South Broadway in Los Angeles, California.

On

January 10, 2023, Plaintiffs Godin Feliciano ("Godin")[2], Lizeth Feliciano ("Lizeth"), Karol Feliciano ("Karol"), and Sergio Feliciano ("Sergio"), a minor, by and through his Guardian ad Litem, Walter Noel Baquedano Aguilar, (collectively, "Plaintiffs") filed their original Complaint against Defendants Tinisha Marion Nelson ("Nelson") and Morris Thomas (erroneously sued as Thomas Morris) ("Thomas") (collectively, the "Defendants").

On

March 29, 2024, Plaintiffs filed the operative Third Amended Complaint (the "TAC") against Defendants and Does 1 through 20, inclusive. The TAC alleges a single cause of action for Motor Vehicle Negligence and prays for general, special, punitive, and compensatory damages, as well as interest.

On

February 4, 2025, the Court granted Intervenor Alliance Insurance Company's ("Intervenor" or "Alliance") Motion for Leave to Intervene. (See Minute Order, 2/4/25.) Alliance is the insurance company for Defendants and moved to intervene because Defendants could not be located. (Id.)

On April

23, 2026, the Court heard a total of twelve discovery motions filed by Plaintiffs, which hearing included four Motions to Compel Further Responses to Plaintiffs Special Interrogatories, Set One. (See Minute Order, 4/23/26.) Alliance was ordered to supplement certain of its responses to Plaintiffs' Special Interrogatories, Set One. (Id.)

On June 29, 2026 Plaintiffs filed the instant four
discovery motions, all concerning Alliance's responses to Plaintiffs' Special
Interrogatories, Sets One ("SROGs") and specified as follows:

No.

Propounding

Responding

Description

Sanctions

1.

Godin Feliciano

Alliance

Special Interrogatories, Set One

\$83.70

2.

Karol Feliciano

Alliance

Special Interrogatories, Set One

\$83.70

3.

Lizeth Feliciano

Alliance

Special Interrogatories, Set One

\$83.70

4.

Sergio Feliciano

Alliance

Special Interrogatories, Set One

\$1,883.70

Total:

\$2,134.80

The above four motions are collectively referred to herein as the "Discovery Motions."

On July 16, 2026, Alliance filed Oppositions to each of the Discovery Motions.

On July 22, 2026, Plaintiffs each filed their Replies.

II.

ANALYSIS

A.

Legal

Standard

A party must respond to interrogatories within 30 days after service. (Code Civ. Proc. § 2030.260(a).) As is set forth by Code of Civil Procedure § 2030.220, a responding party's must respond to special interrogatories as follows:

(a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the

responding party permits.

(b) If an interrogatory cannot be answered completely, it shall be answered to the extent possible.

(c) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.

(Code Civ. Proc. § 2030.220.)

The propounding party may bring motions to compel further responses to interrogatories if it believes (1) the responses received are evasive, or (2) incomplete, or (3) if the objections raised are meritless or too general. (Id., §§ 2030.300(a).) The propounding party must serve notice of a motion to compel further responses to interrogatories within 45 days of the service of the verified responses, or any supplemental verified response, unless the parties agree in writing to extend the deadline to a specific later date. (Id., § 2030.300(c).) 66

A motion to compel further responses to interrogatories shall be accompanied by a meet and confer declaration and a separate statement, or concise outline of the discovery request and each response in dispute. (Code Civ. Proc. § 2030.300(b).) A respondent has the burden to justify objections in response to a motion filed to compel further responses. (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255 (“Fairmont”).)

B.

Meet and
Confer

A motion to compel further discovery responses must be accompanied by a meet and confer declaration pursuant to Code of Civil Procedure § 2016.040. (Code Civ. Proc. § 2030.300.) “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc. § 2016.040.)

Plaintiffs' counsel Suraj Teppara ("Teppara") attests that, after the Court's April 23, 2026 Order compelling further responses to Plaintiffs' Special Interrogatories, Set One, Allied served supplemental responses on May 14, 2026. (Teppara Decl. ISO Sergio Mot., ¶¶ 3-4, Exh. B.) On June 4, 2026, Teppara served a meet and confer letter to Alliance's counsel. (Id., ¶ 7, Exh. C.) On June 10, 2026, Teppara attests that he met and conferred telephonically with Alliance's counsel and followed up with an email the next day. (Id., ¶ 8.) The parties were unable to come to a resolution. (Id., ¶¶ 8-9.)

The Court finds that Plaintiffs have satisfied the statutory meet and confer requirements.

C.

Discussion

Plaintiffs move the Court to compel Alliance's further responses to Special Interrogatories Nos. 13, 16, 17, 18, 24, 28-32 and 40-64. Alliance opposes, arguing that it has fully complied with the Court's April 23, 2026 Order.

1.

Defendant

Tinisha Nelson

At the outset, the Court addresses Defendant Tinisha Nelson's status as Alliance's insured. To various of the contested interrogatories, Alliance responds as follows:

Responding Party does not have access to this information because Tinisha Nelson was not a named insured under the insurance policy in effect at the time of the subject accident, and she has not cooperated with Responding Party in connection with the subject incident or this lawsuit despite numerous attempts by Responding Party.

Instead, the insurance policy in effect at the time of the subject incident contained only Morris Thomas as a named insured, with no additional insureds listed. As a result, Responding Party is not in possession, custody or control of any business records that contain any information that would permit it to respond to this interrogatory.

(See, e.g., Sergio Separate Statement (“SSS”), p. 2:12-19.)

Alliance's response is inadequate and its justification for the inadequacy is in direct contravention with its previous representations. Alliance moved to intervene in this matter on behalf of Defendants Thomas and Nelson, asserting that it “may be required to satisfy a judgment against Defendants” and that it sought leave to intervene on behalf of both Defendants “to defend [Alliance’s] interests as well as those of its insured.” (See Motion for Leave to Intervene, filed 1/2/25, p. 3:8-10, p. 5:17-18.) Alliance further stated in its Motion for Leave to Intervene that it “has a direct interest in the lawsuit because the liability of its insured are at issue.” (Id., p. 6:22.)^[3] Relying upon Alliance's representation that both Thomas and Nelson were its insureds, the Court granted Alliance leave to intervene on their behalf. (See Minute Order, 2/4/25 (Granting Alliance leave to intervene on behalf of Thomas and Nelson).) And Alliance's Answer-in-Intervention states that “[p]ursuant to Court Order Intervenor ALLIANCE UNITED INSURANCE COMPANY . . . hereby intervenes in this action as the insurance carrier for Defendants TINISHA MARION NELSON and MORRIS THOMAS (“Defendants” or “Insureds”) as insured are named Defendants in the Complaint . . .” (See Answer-in-Intervention, filed 2/6/25, p. 1:24-27.) Alliance cannot seek leave to intervene on Nelson's behalf claiming that Nelson is an insured only to later profess an inability to provide discovery responses because Nelson is not an insured.

Furthermore, and to the extent that Alliance's qualifies its response by stating that Nelson “was not a named insured under the insurance policy in effect at the time of the subject accident,” that Nelson was not a named insured at the time of the accident has no bearing upon whether Alliance has in its possession, custody or control documents from when Nelson was an insured (which the Court presumes Nelson must have been given Alliance's aforementioned representations) that might provide the information sought.

Not only that, but within its Motion for Leave to Intervene Alliance's counsel makes attestations as to having telephoned, texted, emailed and hired a private investigator to locate Nelson. (See Carter Decl. ISO Motion for Leave to Intervene, ¶¶ 4-12; see also Ngo Decl., ¶ 6.) Alliance's current protestations as to its inability to provide information as to Nelson, such as even a cellular phone number (see SROG No. 13), therefore rings hollow.

In short, Nelson was an insured at

some point as evidenced by Alliance's presence in this suit as an intervenor on behalf of Nelson, by Alliance's representations made in the course of seeking to intervene, and by the Answer-in-Intervention filed by Alliance. Alliance is required to provide a response that is "as complete and straightforward as the information reasonably available to the responding party permits."

(Code Civ. Proc. § 2030.220(a).) Alliance's

blanket responses that it has no business records because Nelson was not an insured at the time of the incident are insufficient.

2.

Whether the

Further Responses Provided Were Code Compliant

As has been noted twice above, an answer to an interrogatory must be "as complete and straightforward as the information reasonably available to the responding party permits." (Code Civ. Proc. § 2030.220(a); *Collin v. CalPortland Co.* (2014) 228 Cal.App.4th 582, 590.) Where an interrogatory cannot be answered completely, it must be answered to the extent possible. (Code Civ. Proc. § 2030.220(b).) In its April 23, 2026

Order, the Court has already found that the interrogatories at issue are those for which further responses are required because the information might be available from Alliance's business records. (See Minute Order, 4/23/26.)

In addition to the analysis set forth above as to Nelson's status as an insured, the Court does not find that Alliance's responses are code compliant. Alliance's protestation that records available via an industry database(s) are not in Alliance's possession, custody or control is at odds with the express language of the Code of Civil Procedure, which requires that in providing its further responses Alliance must "make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party." (Code Civ. Proc. § 2030.220(c)(emphasis added).) And Alliance's contention that providing such information would require it to attest to the veracity of information based upon third party records which may contain "layered hearsay issues" is not quite correct. Where the information is available from a third party, Alliance may comply with the Code of Civil Procedure by responding to the interrogatory and simply indicating that the information was obtained from a third-party source and therefore Alliance cannot attest to its veracity.[4]

The above preliminary considerations are made as to SROGs 13,

16, 24, 28-32, and 40-64. For each, Alliance provides the same response as set forth above and, for each, the analysis set forth above applies. Alliance is ordered to provide further responses to SROGs 13, 16, 24, 28-32, and 40-64.

As to the remaining at-issue SROGs, Nos. 17 and 18, SROG 17 asks Alliance to identify each person it contends is legally responsible for Plaintiff's damages. And SROG 18 asks Alliance to state all facts in support of its contention that any identified person is legally responsible for Plaintiff's damages. Alliance argues that response to both interrogatories is that each calls for an improper legal conclusion.

An interrogatory may relate to whether a party is making a particular legal contention and may relate to the documents on which the legal contention is based. An interrogatory is not objectionable because the answer to it involves an opinion or contention that would be based on legal theories developed in anticipation of litigation or in preparation for trial. (Code Civ. Proc. § 2030.010; *Rifkind v. Superior Court* (1994) 22 Cal.App.4th 1255, 1261-62 (legal contentions and opinions are discoverable by interrogatory).)

Further responses are required.

3.

Requests for
Sanctions

The court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc. § 2030.300(d).) As is noted above, Plaintiffs seek a total of \$2,134.80 against Alliance and its counsel of record for each Discovery Motion. In its oppositions, Alliance contends there is no justification for an award of sanctions against it and requests monetary sanctions of \$500 per motion against Plaintiffs "as a consequence for unsuccessfully making this motion, without substantial justification." (Opp. to Sergio SROGs Mot., p. 6:13-25.)

For Sergio's

SROGs motion, Plaintiffs seek a total of \$1,883.80, consisting of: (1) 6 hours researching and drafting the motion; (2) an anticipated 2 additional hours reviewing any opposition, drafting a reply and attending the hearing, all billed at the rate of \$300/hr; and (3) \$83.70 in filing fees. (Teppara Decl. ISO Sergio SROGs Mot. ¶¶ 10-12.) For Lizeth, Godin and Karol's motions, Plaintiffs seek only \$83.70 in filing fees for each motion. (Lizeth Mot., ¶ 12; Godin Mot., ¶ 12; Karol Mot., ¶ 12.)

The Court finds that sanctions are warranted given the above analysis regarding Alliance's responses as contrasted to its representations in seeking to intervene. The Court further finds that Plaintiff's cited rate is reasonable and the hours spent are also reasonable as Plaintiffs have acknowledged the duplicative nature of the Discovery Motions and have reduced their requested fees accordingly.

Plaintiffs' requests for sanctions are GRANTED in the amount of \$2,134.80.

III.

CONCLUSION

Plaintiffs' four Motions to Compel Further Responses to Special Interrogatories, Sets One are GRANTED.

Plaintiffs' Requests for Sanctions are GRANTED in the amount of \$2,134.80. Alliance's requests for sanctions are DENIED.

Further responses are ordered served no later than August 14, 2026. The awarded sanctions are ordered to be paid to Plaintiffs' counsel no later than August 31, 2026.

[1] Plaintiffs filed 4 discovery motions, as is detailed herein. Having reviewed each motion, the Court understands that at base there is one primary motion, which is then repeated as to the four moving parties. Accordingly, the Court rules upon one motion (filed by Plaintiff Sergio Feliciano), which ruling will be extrapolated to apply to each moving party.

[2] Each Plaintiff has the same surname so the Court identifies each by first name.

[3] Within its Motion for Leave to

Intervene, Alliance's counsel makes attestations under oath as to telephoning, texting, emailing and hiring a private investigator to locate Nelson. (See Carter Decl. ISO Motion for Leave to Intervene, ¶¶ 4-12; see also Ngo Decl., ¶ 6.) Alliance's current protestations as to its inability to provide information as to Nelson, such as a phone number, therefore rings hollow.

[4] This situation differs from the "information

from a police report" situation presented at the first hearing on April 23, 2026.

(See Minute Order, 4/23/26, fn. 4.) There, the police report was equally available to both parties and fell within the exception set forth in Code of Civil Procedure § 2030.220(c). Here, the information appears to be only accessible by, and therefore only available to, Alliance.